

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Constantinos Stivaros	Team: Team # 2	CCRB Case #: 201011039	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/05/2010 9:25 AM	Location of Incident: 119 Avenune and Long Street	18 Mo. SOL 2/5/2012	Precinct: 113
Date/Time CV Reported Fri, 08/06/2010 8:25 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/11/2010 2:17 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Carleo	12860	934580	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Peter Boneta	14459	938085	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Carleo	Discourtesy: PO Michael Carleo spoke obscenely and/or rudely to § 87(2)(b)	A . Complainant Uncooperative

Case Summary

On August 6, 2010, § 87(2)(b) called the Internal Affairs Bureau (IAB) Command Center to file a complaint. On August 11, 2010, the complaint was referred to the Civilian Complaint Review Board (CCRB), under IAB number 10-39684. On August 5, 2010, at approximately 9:25 a.m., § 87(2)(b) § 87(2)(b), was driving § 87(2)(b) on Brewer Boulevard in Queens. At a stop sign at the intersection of Brewer Boulevard and 119 Road, § 87(2)(b) did not come to a complete stop and was pulled over by two officers in a marked police vehicle. Two officers were present in the vehicle, PO Bonetta, who was the passenger in the vehicle and who § 87(2)(b) described as a white male with brown hair, medium build and about 5'8" tall and PO2 who was the driver of the vehicle and who § 87(2)(b) described as a white male in his mid-40s with a medium build. The investigation was able to identify this officer as Officer Michael Carleo. PO Bonetta first approached § 87(2)(b) and informed him that he had run a stop sign. § 87(2)(b) tried to explain that he did stop, but not all the way. Then, PO Carleo came out of the vehicle and asked § 87(2)(b) "why do you have an attitude?" and was being rude to § 87(2)(b). PO Bonetta continuing writing the ticket for § 87(2)(b) and PO Carleo returned to the vehicle. When PO Bonetta was finished, PO Carleo used the PA system in the police car to say to § 87(2)(b) "Fuck you, you asshole. I'll get you next time" (**Allegation A**). The police vehicle then left the scene.

On October 5, 2010, the case was submitted to the mediation unit. On January 12, 2011, the case was returned to the investigation unit because PO Carleo rejected mediation. On January 12, 2011, a call was placed to § 87(2)(b) but his phone number was out of service. A please call letter was sent to § 87(2)(b)'s residence. A lexis search was also conducted to uncover any new phone numbers. On January 13, 2011, a new phone number and address was uncovered for § 87(2)(b) from LexisNexis. Between January 13, 2011 and January 21, 2011, five calls were placed to § 87(2)(b)'s new phone number. On January 13, 2011 and January 20, 2011, please call letters were mailed to § 87(2)(b)'s residence. As of the writing of this report, no letters have returned by the USPS and § 87(2)(b) is not currently incarcerated. Furthermore, § 87(2)(b) has not made any attempts to contact the CCRB. Due to § 87(2)(b)'s lack of cooperation with the investigation, it is recommended that the case be closed as "*complainant uncooperative*."

Team: _____

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Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____

Title/Signature

Print

Date